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Oregon Set-Aside (Expungement) Agent Training Reference

A complete operational knowledge base for clearing criminal records in Oregon: the ORS 137.225 motion to set aside arrests, charges, and convictions as reshaped by SB 397, the waiting-period tiers, eligibility, exclusions, marijuana relief, procedure, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of Oregon (the circuit court where the conviction was entered or the citation issued)
Primary statute	ORS 137.225 — Order setting aside conviction, contempt finding, or record of criminal charge
Controlling change	SB 397 (eff. Jan 1, 2022) — cut most waiting periods, eliminated most fees, expanded eligibility
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects ORS 137.225 as amended through the 2024–2025 sessions

VERIFY BEFORE RELYING

Oregon uses one statute — ORS 137.225 — for everything, and calls it a “set-aside,” though people say “expungement.” There are no separate sealing and expungement tracks: the court sets aside and seals the record, and the event is then deemed not to have occurred, so the person may lawfully deny it. SB 397 (effective January 1, 2022) dramatically cut the waiting periods, eliminated most filing fees, and expanded eligibility, and the statute has been further amended in 2024–2025, so older guides are unreliable. Two cautions: a set-aside does NOT restore firearm rights (per 2024 Oregon State Police policy), and a drafting quirk has at times made some DISMISSED serious charges wait as long as a conviction. The agent must verify the current ORS 137.225 text and waiting period before relying on any rule.

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How the agent should use this document

Oregon routes everything through a single motion to set aside under ORS 137.225, but the rules differ sharply by disposition. **Arrests and charges that did not lead to conviction** are the easiest: a dismissal can be set aside with little or no wait, an acquittal at any time, and an arrest with no charges filed 60 days after the prosecutor declines. **Convictions** require completing the entire sentence and then a waiting period that depends on the offense class (1 year for low-level misdemeanors up to 7 years for Class B felonies), with no new conviction during that period. **Some offenses are categorically excluded** — traffic/DUII, registrable sex offenses, Class A felonies, and serious person crimes. The agent should (1) determine arrest/charge vs. conviction; (2) for non-convictions apply the short or no-wait rules; (3) for convictions identify the offense class and its waiting tier and confirm sentence completion; and (4) screen the exclusion list.

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Statutory shorthand used throughout

ORS 137.225	The single set-aside statute — arrests, citations, charges, convictions, contempt findings
137.225(1)(a)	Motion to set aside a CONVICTION after completing the sentence + waiting period
137.225(1)(b)	The waiting-period tiers by offense class
137.225(1)(c)	Set-aside of ARRESTS / dismissed charges / acquittals (short or no wait)
137.225(5)/(6)	Which offenses are eligible vs. categorically excluded
137.225(8)(b)	Effect: the arrest/charge/conviction is “deemed not to have occurred”
SB 397 (2021)	Reduced waits, removed most fees, expanded eligibility (eff. 1/1/2022)
OSP / LEDS	Oregon State Police — Law Enforcement Data System (the criminal history)

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1. Eligibility rules

One statute, two broad situations, routed by disposition.

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Situation A — Arrests and charges without conviction (137.225(1)(c))

The most accessible relief, with short or no waiting periods:

- **Dismissed charge** — may be set aside, generally with little or no waiting period (but see the drafting-quirk caution: some dismissed serious charges have at times been forced to wait the same period as a conviction).
- **Acquittal** (found not guilty) — may be set aside at any time.
- **Arrest with no charges filed** — may be set aside 60 days after the prosecutor notifies the court that no charge will be pursued (SB 397 cut this from one year).
- No requirement (post-SB 397) of being arrest-free for three years or conviction-free for ten before applying to set aside an uncharged arrest.

Situation B — Convictions (137.225(1)(a))

A person convicted of an eligible offense who has FULLY completed the sentence (all incarceration, probation, post-prison supervision, and restitution) may move to set aside the conviction after the applicable waiting period (Section 2), provided they have no new conviction during that period. Eligible offenses include most misdemeanors, Class C felonies, many Class B felonies, Class A marijuana/racketeering in some cases, Schedule I drug-possession offenses, and violations. A person still under supervision has not completed the sentence and is not yet eligible.

Marijuana relief

Following decriminalization, Oregon greatly expanded set-asides for marijuana offenses. For set-aside purposes, marijuana offenses committed before July 1, 2015 are reclassified to the level they would carry today, which makes many of them eligible far sooner (or immediately), and certain old municipal/justice-court marijuana-possession judgments have been given expiration relief by statute.

AGENT GUIDANCE

Route by disposition. Dismissal → set aside with little/no wait; acquittal → any time; uncharged arrest → 60 days after the DA declines; conviction → complete the sentence, then the class-based wait.
For marijuana, reclassify pre-July-2015 offenses to today's level before assessing eligibility — it often shortens or eliminates the wait.

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2. Waiting periods

Conviction waits run from the date of conviction or release from imprisonment, whichever is later, and the person must have no other conviction during the period. SB 397 cut these substantially.

Disposition / offense class	Waiting period	Measured from
Dismissed charge	Little / none	Dismissal (verify the serious-charge quirk)
Acquittal	None (any time)	—
Arrest, no charges filed	60 days	DA's notice declining to prosecute
Class B or C misdemeanor, violation, contempt finding	1 year	Conviction/finding or release, later
Class A misdemeanor	3 years	Conviction or release, later
Class C felony	5 years	Conviction or release, later
Class B felony	7 years	Conviction or release, later

A central SB 397 improvement is how MULTIPLE convictions are treated. The single waiting period is measured from the most recent eligible conviction, and — importantly — a conviction arising from the SAME criminal episode (or same course of conduct) as the offense being set aside does NOT count as a disqualifying “other conviction” during the waiting period. The old regime forced a flat 10-year wait whenever a person had more than one conviction, even from one case; that is gone. The waiting period is keyed to the highest applicable class among the convictions a person seeks to set aside.

AGENT GUIDANCE

Use the class tiers: 1 yr (Class B/C misdemeanor, violation, contempt), 3 yrs (Class A misdemeanor), 5 yrs (Class C felony), 7 yrs (Class B felony), measured from conviction or release, whichever is later.

Don't let a same-episode second conviction scare a user off — SB 397 says it doesn't count as a disqualifying other conviction. Confirm sentence completion (including restitution) before the clock starts.

3. Disqualifying / ineligible offenses

Oregon excludes whole categories regardless of time elapsed or sentence completion (ORS 137.225(5), (6), (10)).

- **Traffic offenses**, including standard DUII convictions — categorically ineligible (a DUII diversion that is dismissed is treated differently, but a DUII conviction cannot be set aside).
- **Sex offenses** requiring registration under ORS 163A.010 and most other sex crimes.
- **Class A felonies** (with limited marijuana-related exceptions).
- **Serious person crimes / violent offenses** — murder, manslaughter, criminally negligent homicide, assault causing serious physical injury, and similar.
- **Aggravated vehicular homicide** and other enumerated serious offenses.
- **Crimes against vulnerable victims** (certain offenses against children or dependent persons).
- **Criminal mistreatment** and certain offenses against family/household members, as enumerated.

Record / timing disqualifiers

- **New conviction during the waiting period** (other than a same-episode conviction) resets eligibility.
- **Pending charges.** A person under charge for any crime when the motion is pending is not eligible.
- **Sentence not complete.** Still being on probation or post-prison supervision (or owing restitution) means the sentence is not complete and the clock has not started.
- **Federal or out-of-state convictions** are not reachable by ORS 137.225.

Important effect limit

- **Firearms.** As of 2024 Oregon State Police policy, a set-aside does NOT restore firearm rights; a separate restoration process is required.

VERIFY BEFORE RELYING

The eligible/ineligible line in ORS 137.225(5)–(6) is defined by offense and class and has been amended repeatedly (2021 SB 397, plus 2024–2025 changes), and a known drafting quirk in subsection (9) has at times forced some DISMISSED serious charges to wait the full conviction period. The agent must map the offense to its ORS class, check the current eligibility lists, and verify the dismissed-charge timing before declaring eligibility.

AGENT GUIDANCE

Traffic/DUII, registrable sex offenses, Class A felonies, and serious person crimes are the hard categorical bars — screen for these first; they don't clear with time.

Set expectations on firearms: a set-aside seals the record but, under current OSP policy, does not restore gun rights — that needs a separate process.

4. Case outcome rules

Disposition and offense class drive the timing and eligibility. This table is the agent's primary routing logic for Oregon.

Case outcome	Route	Waiting period	Note
Charge dismissed	Set aside	Little / none	Verify serious-charge quirk
Acquittal (not guilty)	Set aside	Any time	—
Arrest, no charges filed	Set aside	60 days	After DA declines
Class B/C misdemeanor, violation, contempt	Set aside	1 year	Eligible offense
Class A misdemeanor	Set aside	3 years	Eligible offense
Class C felony	Set aside	5 years	Eligible offense
Class B felony	Set aside	7 years	Eligible (e.g., many drug felonies)
Marijuana (pre-7/1/2015)	Set aside	Reclassified	Often immediate / shorter
Traffic / DUII / sex-reg. / Class A felony / person crime	—	Ineligible	Categorical bar

Effect of relief: when the court grants the motion, it enters an order setting aside and sealing the record, and under ORS 137.225(8)(b) the arrest, citation, charge, or conviction is “deemed not to have occurred.” The person may then lawfully answer that they were never arrested, cited, or convicted of that offense on most applications. The order reaches Oregon court and law-enforcement records (OSP/LEDS); it does not reach federal or other states' records, and — per current OSP policy — it does not restore firearm rights.

AGENT GUIDANCE

Tell users the set-aside is strong: the event is legally deemed never to have occurred and they may deny it on most applications. But it reaches only Oregon records and doesn't restore firearm rights. Match the waiting tier to the highest offense class in the motion, and confirm no disqualifying new conviction (same-episode convictions excepted).

5. Required forms

Oregon relief is by a motion to set aside filed in the circuit court where the conviction was entered or the citation issued. The Oregon Judicial Department and many county courts publish set-aside packets; a State Police fingerprint/record step is required for convictions.

Core components of a set-aside filing

- 1 Motion and Affidavit to Set Aside** (ORS 137.225) — identifies the case, the offense, the disposition, the statutory basis, and recites the eligibility facts (sentence completed, waiting period elapsed, no new conviction, no pending charges).
- 2 Proposed Order to Set Aside** — the order the judge signs; on entry the record is set aside and sealed and the offense is deemed not to have occurred.
- 3 Fingerprint card + Oregon State Police record check** — for convictions, a set of fingerprints is submitted to the OSP with the statutory fee so the State Police can confirm the criminal history; the OSP and DA receive copies of the motion.
- 4 Certificate of completion / proof of sentence completion** where needed (e.g., probation discharge), and proof of service on the prosecuting attorney.

AGENT GUIDANCE

Use the county's set-aside packet where available; pair the Motion/Affidavit with the proposed Order, and for convictions include the OSP fingerprint card and fee so the State Police can run the record check. Serve the prosecuting attorney and keep proof; the DA has a window to object and may request a hearing.

6. Filing instructions

- 1 Get the record.** Obtain your Oregon State Police (LEDS) criminal history and the court disposition to confirm the offense class, the disposition, sentence-completion dates, and any other convictions.
- 2 Confirm eligibility.** Arrest/charge vs. conviction; the class-based waiting period; sentence completion (including restitution and supervision); no disqualifying new conviction; and that the offense is not categorically excluded.
- 3 Prepare the Motion, Affidavit, and proposed Order** citing ORS 137.225, with the eligibility recitals; for convictions, complete the OSP fingerprint card.
- 4 File in the circuit court** where the conviction was entered or the citation issued, and submit the fingerprints + fee to the Oregon State Police (SB 397 eliminated the court filing fee for many set-asides; a residual OSP/processing fee around \$33 may apply per conviction).
- 5 Serve the prosecuting attorney** (district attorney or city attorney) with a copy of the motion.
- 6 DA review / hearing.** The prosecutor has a statutory period to object; if there is no objection many courts grant on the papers, and if the DA objects the court holds a hearing.
- 7 Order and sealing.** If granted, the court enters the Order to Set Aside; the clerk and the Oregon State Police seal the record and the offense is deemed not to have occurred. Keep a certified copy of the order.

AGENT GUIDANCE

Venue is the circuit court of the county where the conviction was entered or the citation issued — a person with cases in several counties files separately in each.

The OSP fingerprint/record step is the usual bottleneck and processing can take many months in some counties; start the LEDS request and fingerprinting early.

7. Court-specific quirks

- **One statute, one remedy.** Oregon has no separate sealing vs. expungement tracks — ORS 137.225 sets aside AND seals, and the offense is then deemed never to have occurred.
- **SB 397 reset the timelines.** Effective 1/1/2022 it cut most waits (e.g., Class B felony to 7 years), removed most filing fees, and ended the old flat 10-year wait for anyone with multiple convictions — older guides are unreliable.
- **Same-episode convictions don't disqualify.** A second conviction from the same criminal episode is not a disqualifying “other conviction” during the waiting period.
- **The dismissed-serious-charge quirk.** A drafting error in subsection (9) has at times forced some dismissed serious charges to wait the full conviction period rather than being set aside promptly — verify current treatment.
- **Firearms not restored.** Per 2024 OSP policy, a set-aside does not restore firearm rights; a separate restoration is required.
- **Fingerprint + OSP step** is mandatory for convictions and is the main source of delay.
- **Processing times vary widely** by county — some have run close to two years.
- **Marijuana reclassification.** Pre-July-2015 marijuana offenses are reclassified to today's level for set-aside purposes, often making them eligible immediately.

AGENT GUIDANCE

Rely on the current statute, not older summaries — SB 397 and the 2024–2025 amendments changed the waits and eligibility substantially.

Flag two expectations up front: long county processing times, and that a set-aside won't restore gun rights.

8. Fee information

Item	Amount	Note
Court filing fee (many set-asides)	\$0	SB 397 eliminated most court filing fees
OSP fingerprint / processing fee	~\$33 per conviction	Residual fee for the State Police record check
Arrest / dismissed-charge set-aside	Often \$0	No court fee
Oregon State Police (LEDS) record	OSP fee	To confirm record before filing
Attorney fees (if represented)	Varies	Not required; legal-aid and set-aside clinics assist

SB 397 made Oregon set-asides far cheaper by eliminating most court filing fees (a reported saving of roughly \$281 per case). What typically remains is the Oregon State Police fingerprint/processing fee (around \$33 per conviction) for the record check, plus the cost of obtaining the LEDS criminal history to confirm eligibility. Set-asides of arrests and dismissed charges are often free. Legal-aid organizations and periodic set-aside clinics assist people who cannot afford a lawyer.

AGENT GUIDANCE

Lead with the good news: most court filing fees were eliminated by SB 397, so the main cost is the ~\$33 OSP processing fee per conviction plus the record-check fee.

Arrest and dismissed-charge set-asides are usually free — cost should rarely deter a non-conviction filing.

9. Criminal history (State Police) request process

Confirming the record first establishes the offense class (which sets the waiting tier), the disposition, and the sentence-completion dates that start the clock.

A. Statewide history — Oregon State Police (LEDS)

- The Oregon State Police maintain the state criminal history through the Law Enforcement Data System (LEDS); a person may request their own record for a fee.
- The OSP also processes the fingerprint-based record check that accompanies a conviction set-aside and seals the record once the court's order is entered.

B. Court records — circuit court of the county

- The circuit court where the conviction was entered or the citation issued holds the case file and is where the motion to set aside is filed.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Oregon, the FBI fingerprint-based Identity History Summary is the federal equivalent; an Oregon set-aside reaches Oregon records only.

VERIFY BEFORE RELYING

OSP/LEDS request methods and fees, and county processing times, can change. The agent should verify the current Oregon State Police request process and fee at the time of advising rather than quoting fixed figures from memory.

AGENT GUIDANCE

Frame the OSP/LEDS criminal-history request as step one — it fixes the offense class and the sentence-completion dates that drive eligibility. Direct users to the circuit court of the county for the case file and filing.

10. Sample motions and completed examples

Oregon relief is filed on a motion to set aside in the circuit court. The examples below show structure and key recitals for the main situations. Names, dates, and identifiers are fictional and illustrative.

Example A — Motion to Set Aside a Conviction (ORS 137.225(1)(a))

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF MULTNOMAH
STATE OF OREGON v. ANDRE L. CARTER Case No. 19CR01234

MOTION AND AFFIDAVIT TO SET ASIDE CONVICTION (ORS 137.225)

1. Defendant: Andre L. Carter; DOB 07/22/1992.
2. On 03/14/2019 defendant was convicted of Possession of a Controlled Substance (a Class C felony, ORS 475.xxx).
3. Defendant fully completed the sentence -- all probation, supervision, and restitution -- on 03/14/2020.
4. More than five (5) years have elapsed since conviction/release (the Class C felony waiting period).
5. Defendant has not been convicted of any other offense during the waiting period (any same-episode conviction does not count), and has no criminal charge pending.
6. The offense is eligible and is not a traffic, DUII, sex-registration, Class A felony, or serious person crime.
7. Fingerprints have been submitted to the Oregon State Police with the processing fee for the record check.

WHEREFORE defendant moves the Court to SET ASIDE and SEAL the record of this conviction under ORS 137.225, so that it is deemed not to have occurred. (Copy served on the District Attorney.)

Examples B, C & D — Other situations

B. DISMISSED CHARGE / ACQUITTAL (ORS 137.225(1)(c)):

A dismissed charge may be set aside with little or no wait; an acquittal may be set aside at ANY time. (Verify the subsection (9) quirk for some dismissed SERIOUS charges, which have at times had to wait the full conviction period.)

C. ARREST, NO CHARGES FILED (ORS 137.225(1)(c)):

60 days after the prosecutor notifies the court that no charge will be pursued, the arrest record may be set aside. SB 397 removed the old 1-year wait and the no-other-arrest / no-conviction look-back conditions.

D. MARIJUANA (pre-July 1, 2015):

A pre-7/1/2015 marijuana offense is reclassified to the level it would carry today for set-aside purposes, which often makes it eligible immediately or after a much shorter wait.

Order to Set Aside

The motion is accompanied by a proposed Order to Set Aside. On entry, the order directs that the record of the arrest, citation, charge, or conviction be set aside and sealed, directs the Oregon State Police to seal its records, and provides that under ORS 137.225(8)(b) the offense is deemed not to have occurred.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Oregon's set-aside statute and common practice and is not legal advice. ORS 137.225 was substantially amended by SB 397 (eff. 1/1/2022) and further amended in 2024–2025; a drafting quirk has affected some dismissed serious charges, and a set-aside does not restore firearm rights under current OSP policy. The agent must verify the current statutory text, the waiting-period tiers, the eligible/excluded offense lists, OSP request processes, and county procedures before relying on any rule here.